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LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

AUGUST 5,

2026

DEMURRER

Los Angeles Superior Court Case # 25CHCV03704

Demurrer filed: 4/8/26

MOVING PARTY: Defendants The Regents of the University of California; and Lawrence Waldman Johnson Jr. (collectively, "Moving Defendants")

RESPONDING PARTY: Plaintiffs Jose Fortuna Vega-Garcia; Nayeli Vega; Miranda Vega; Maria Vega; and Karina Vega (collectively, "Plaintiffs")

NOTICE: OK

RELIEF REQUESTED: Moving Defendants demur against the first, third, and fourth causes of action in Plaintiffs' first amended complaint ("FAC").

TENTATIVE RULING: The demurrer is overruled as to Plaintiffs' first cause of action, and sustained as to Plaintiffs' third and fourth causes of action with 20 days leave to amend.

BACKGROUND

This is a personal injury action in which Plaintiffs allege that on 5/27/25, they were injured in a multi-car collision on the northbound Interstate 5 freeway, near Balboa Boulevard in the City of Los Angeles, County of Los Angeles, State of California. (FAC ¶¶ 15–22.) Plaintiffs allege that moving defendant Johnson was driving one of the subject vehicles, and was employed by moving defendant The Regents of the University of California (the "Regents"). (Id. at ¶¶ 16–17.)

On 10/16/25, Plaintiffs filed their original complaint, alleging against Defendants the following causes of action: (1) Negligence; (2) Negligent Act or Omission of Public Entity or Public Employee; (3) Permissive Use of Vehicle; and (4) Negligent Entrustment. On 1/20/26, Plaintiffs filed their operative FAC, alleging the same causes of action.

On 4/8/26, Moving Defendants filed the instant demurrer. On 7/24/26, Plaintiffs filed their opposition. On 7/30/26, Moving Defendants filed their reply.

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ANALYSIS

As a general matter, a party may respond to a pleading against it by demurrer on the basis of any single or combination of eight enumerated grounds, including that "the pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd.

(e.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)

“A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Here, Moving

Defendants' demur to Plaintiffs' first, third, and fourth causes of action on the basis that Plaintiffs fail to allege facts sufficient to state those causes of action.

A.

Meet-and-Confer

Before

filing its demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41, subd. (a).) “The demurring party shall file and serve with the demurrer a declaration stating either of the following: (A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer. (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Id. at subd. (a)(3).)

Here, Moving Defendants' counsel declares that beginning on 2/20/26, she made multiple attempts to reach Plaintiffs' counsel to meet and confer regarding the issues raised in the instant demurrer, but received no response (Decl. of Aihui Su ¶¶ 3–8.) Therefore, the Court finds that counsel has satisfied the preliminary meet and confer requirements of Code of Civil Procedure section 430.41, subdivision (a).

A.

Negligence

Plaintiffs' first cause of action

alleges Negligence against Defendants. To state a claim

for negligence, a plaintiff must allege the elements of (1) "the existence of a

legal duty of care," (2) "breach of that duty," and (3) "proximate cause

resulting in an injury." (McIntyre v. Colonies-Pacific, LLC (2014) 228

Cal.App.4th 664, 671.) "Except as otherwise provided by statute: ... A public

entity is not liable for an injury, whether such injury arises out of an act or

omission of the public entity or a public employee or any other person." (Gov.

Code § 815, subd. (a).) However, "a public entity is liable for injury

proximately caused by an act or omission of an employee of the public entity

within the scope of his employment if the act or omission would, apart from

this section, have given rise to a cause of action against that employee or his

personal representative." (Gov. Code § 815.2, subd. (a).) "Except as otherwise

provided by statute (including Section 820.2), a public employee is liable for

injury caused by his act or omission to the same extent as a private person."

(Gov. Code § 820,

subd. (a).)

Here, Moving Defendants argue that "Plaintiffs'

negligence claim cannot proceed against the Regents because Government Code

section 815 explicitly disallows common law suits against public entities." (Dem.

2:4–5.) Moving Defendants assert that "Plaintiff's first amended complaint

fails to identify any statutory basis for its negligence claim against the

Regents. In the absence of a statutory basis, the claim is not viable, and

demurrer should be sustained." (Id. at 2:13–15.)

In opposition, Plaintiffs argue

that they "have properly alleged facts sufficient to overcome their burden of

pleading. Defendant's demurrer should be overruled." (Pls.' Opp. 6:9–11, citing

Gov. Code §§ 815.2, 815.6, 820.) The Court notes that Plaintiffs do not

identify the allegations in the FAC that satisfy the pleading standard.

Nevertheless, the Court, upon review of the FAC, finds that Plaintiffs have

sufficiently alleged that "at all times herein mentioned, each of the

Defendants were the agent, servant, employee, and joint venturer of each of the

remaining Defendants and at all times alleged hereinafter mentioned, Defendants

were acting within the purpose and scope of said agency, employment, and joint

venture.” (FAC ¶

3.) Plaintiffs further allege that defendant Johnson was employed by the Regents at the time of the subject incident. (Id. at ¶ 16.)

Based on the foregoing, the Court finds that Plaintiffs have alleged facts sufficient to constitute a Negligence cause of action against Moving Defendants. Accordingly, the demurrer is overruled as to Plaintiffs’ first cause of action.

B.

Permissive Use of Vehicle

Plaintiffs’

third cause of action alleges Permissive Use of Vehicle in violation of Vehicle Code section 17150 against Defendants. “Every [private] owner of a motor vehicle is liable and responsible for death or injury to person or property resulting from a negligent or wrongful act or omission in the operation of the motor vehicle, in the business of the owner or otherwise, by any person using or operating the same with the permission, express or implied, of the owner.”

(Veh. Code § 17150.)

Here, as

Moving Defendants observe, “Vehicle Code §17150 applies to private owners only, not to the Regents, which is a public entity.” (Dem. 2:23–24.) “As to Defendant Johnson, Plaintiffs’ sole allegation at paragraph 58 of the complaint is nonsensical—it alleges that he allowed himself to use his own vehicle. This is no basis for ‘permissive use’ liability.” (Id. at 3:2–4.)

In

opposition, Plaintiffs argue that “Defendant’s Counsel either did not read the case cited in their brief or it deliberately included this citation knowing that it was not applicable to the instant motion. Either way, Defendants have improperly relied on this case setting forth improper standard at this stage of the litigation.” (Pls.’ Opp. 7:5–8.) However, the Court notes that Moving Defendants did not cite any to case law as it pertains to Plaintiffs’ third cause of action.

The Court

agrees with Moving Defendants that “Plaintiffs fail to show why this cause of

action under Vehicle Code §17150 is applicable to a public entity.” (Defs.’ Reply 2:21–22.) “Plaintiffs in their Opposition cited CACI 720, claiming that The Regents is liable for the conduct of its employee in this alleged incident. However, Plaintiffs’ Third Cause of Action is ‘For statutory liability - Vehicle Code §17150.’” (Id. at 2:17–19.)

Based on

the foregoing, the Court finds that Plaintiffs have failed to allege facts sufficient to constitute a cause of action for Violation of Vehicle Code section 17150 against Moving Defendants. Accordingly, the demurrer is sustained as to Plaintiffs’ third cause of action.

C.

Negligent Entrustment

Plaintiffs’

fourth cause of action alleges Negligent Entrustment against Defendants. “The theory of negligent entrustment makes an employer liable for its own negligence in choosing an employee to drive a vehicle.” (Diaz v. Carcamo (2011) 51 Cal.4th 1148, 1152.) In Diaz, the California Supreme Court explained that an “a person injured by someone driving a car in the course of employment may sue not only the driver but that driver’s employer. The employer can be sued on two legal theories based on tort principles: respondeat superior and negligent entrustment.” (Id. at 1151–1152.) The Diaz Court held that a plaintiff cannot pursue a negligent entrustment claim “if, as here, a plaintiff asserts both theories, and the employer admits vicarious liability for any negligent driving by its employee.” (Id. at 1152.)

Here,

Moving Defendants argue that “Plaintiffs allege that Defendant Johnson was acting within the course and scope of employment of the Regents. Taking the allegations of the complaint as true at the pleading stage, pursuant to Diaz, plaintiffs cannot pursue a negligent entrustment claim against the Regents.” (Dem. 3:16–18, citing 51 Cal.4th at 1151.)

However,

the Court notes that Diaz was decided after trial and a jury verdict, and not at the pleading stage. Furthermore, unlike in Diaz, here, the Regents have not admitted to vicarious liability for Johnson’s alleged conduct, nor could they at the pleading stage. The Court rejects Moving Defendants’

suggestion that their refrainment from demurring against Plaintiffs' second cause of action amounts to an admission to vicarious liability. Therefore, the Court finds that Plaintiffs are not barred from proceeding on this legal theory of direct liability against the Regents.

As to

Johnson, the Court agrees with Moving Defendants that the FAC "lacks any allegations that Defendant Johnson entrusted the vehicle to another. It therefore fails to state any facts constituting a cause of action for negligent entrustment as against Defendant Johnson." (Dem. 3:24–26.) Therefore, the Court finds that Plaintiffs have failed to allege facts sufficient to constitute a cause of action for Negligent Entrustment against defendant Johnson only. To this extent, the demurrer is sustained as to Plaintiffs' fourth cause of action.

D.

Leave to Amend

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

Here, the Court notes that this is the first demurrer brought in this action, and that Plaintiffs seek leave to amend the FAC in the event that the Court sustain any portion of the demurrer. Based on the Court's liberal policy on granting leave to amend, the Court grants Plaintiffs 20 days leave to amend.

CONCLUSION

The demurrer is overruled as to Plaintiffs' first cause of action, and sustained as to Plaintiffs' third and fourth causes of action with 20 days leave to amend.